

Amendment No. 4 to SB2171

Yager
Signature of Sponsor

AMEND Senate Bill No. 2171

House Bill No. 1898*

by deleting § 68-107-102(5) in SECTION 1 and substituting:

(5) "Child safety risk" means a material and foreseeable risk that a covered chatbot will engage in behavior when interacting with a minor that, if it had been engaged in by a human, would be deemed to intentionally or recklessly cause:

(A) Death or bodily injury to the minor, including as a result of self-harm;

or

(B) Damage to the mental health of such minor that constitutes severe emotional distress;

AND FURTHER AMEND by deleting § 68-107-102(6) and substituting:

(6) "Covered chatbot":

(A) Means a service that:

(i) Allows an ordinary person to have conversations where humanlike responses are generated by a foundation model;

(ii) Is foreseeably likely to be accessed by minors; and

(iii) Has at least one million (1,000,000) monthly active users; and

(B) Does not include:

(i) Software that operates solely for the purpose of customer service, claims service or operations, business operations, productivity and analysis related to source information, internal research, or technical assistance, regardless of the software's capability to use natural language inputs and generate natural language outputs;

(ii) Software that is incorporated into a video game and cannot discuss topics related to mental health, self-harm, or sexually explicit content, or maintain a dialogue on other topics unrelated to the video game;

(iii) Software that operates solely in connection with a specific physical location, such as a theme park or location-based experience, including services related to visiting or accessing such location, at physical events, or for the promotion, marketing, or exhibition of a film, television program, or other audiovisual work, and which cannot maintain a dialogue on topics unrelated to the physical location, event, or such work;

(iv) An entity regulated under title 56; or

(v) A covered entity or business associate governed by the privacy, security, and breach notification rules issued by the United States department of health and human services (45 CFR Parts 160 and 164), established pursuant to the federal Health Insurance Portability and Accountability Act of 1996 (42 U.S.C. § 1320d et seq.);

AND FURTHER AMEND by deleting § 68-107-102(8)-(14) in SECTION 1 and substituting:

(8) "Large chatbot provider" means a person who makes a covered chatbot available in this state and who, together with the person's affiliates, collectively had an annual revenue of twenty-five million dollars (\$25,000,000) or more;

(9) "Minor" means an individual who has not yet attained eighteen (18) years of age;

(10) "Monthly active users" means the total global number of unique users who have directly interacted with a service at least once in the preceding

thirty (30) days, whether or not those users have registered accounts with the service;

(11) "Person" means an individual, executor, administrator, or other personal representative, or a corporation, partnership, association, or any other legal or commercial entity, whether or not a citizen or domiciliary of this state and whether or not organized under the laws of this state; and

(12) "Property" means tangible or intangible property.